ASMDEV INCORPORATED (PRIVATE) LIMITED
and
JOH AND LEWIS INVESTMENTS (PRIVATE) LIMITED
and
JOHANNE CHARASA
and
KNOWLEDGE MAZIVANHANGA
and
PETER MARENGU
and
SHERIFF OF THE HIGH COURT OF ZIMBABWE
and
MAZOWE MINING COMPANY (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE; 14 & 25 November 2025

Special Plea

B Maruva, for the plaintiff
A Chihombori, for the 1st, 2nd, 3rd & 4th defendants
B Ngwenya, for the 6th defendant

DEMBURE J:

[1] The sixth defendant raised a special plea in bar against the plaintiff's claim on the ground that the plaintiff did not seek leave to sue the company, which is under corporate rescue. The special plea was opposed by the plaintiff. On 14 November 2025, the court heard the sixth defendant's special plea. After hearing oral submissions from the counsels for both the six defendant and the plaintiff, the court dismissed the special plea with costs. The following are the full written reasons for the court's decision.

THE PARTIES

[2] The applicant is Asmdev Incorporated (Private) Limited, a company duly incorporated in terms of the laws of Zimbabwe. The first defendant is Joh and Lewis Investments (Private) Limited, a company also duly incorporated in terms of the laws of Zimbabwe.

The second to fourth defendants are Johanne Charasa, Knowledge Mazivanhanga and Peter Marengu, respectively, who are all male adults. The fifth defendant is the Sheriff of the High Court of Zimbabwe, cited in his official capacity. The sixth defendant is Mazowe Mining Company (Private) Limited, a company duly incorporated in terms of the laws of Zimbabwe (*"the company"*). The company is under corporate rescue following the commencement of corporate rescue proceedings in the matter in Case No. HCHC 84/24, which is still pending.

FACTUAL BACKGROUND

[3] On 1 October 2024, the plaintiff, as the applicant, filed an urgent court application for the remedy of a *mandamus van spolie*. The proceedings were commenced only against the first to the fifth defendants (as the respondents therein). The plaintiff's case is that it leases a mining site known as Lonhro, located in Mazowe, in terms of a lease agreement with the sixth defendant. It further averred that it has been in peaceful and undisturbed possession of the said Lonhro mining shaft under the sixth defendant's licence since 2021, and has been conducting gold mining activities thereat.

[4] It was averred further that the first to fourth defendants unlawfully despoiled the plaintiff of the mining shaft on 16 September 2024. The said defendants and their employees are alleged to have approached the mining site carrying machetes, knobkerries and other dangerous weapons, which they used to threaten and scare away the plaintiff's employees. The plaintiff's employee had to run for their lives, and the said defendants are further alleged to have locked up the mining shafts with chains and stopped the plaintiff from utilising and working on the shafts. The spoliation order sought by the plaintiff is stated as follows:

> "1. The 1st to the 4th Defendants shall forthwith restore to the Plaintiff full access, control and possession of Lornho mining site until the due process of the law is followed.
> 2. The 1st to 4th Defendants be and are hereby prohibited from further occupation of the mine and restore Plaintiff's peaceful and undisturbed possession of Lornho Mining Site.
> 3. The 1st to the 4th Defendants be and are hereby ordered to remove all the chains, barricades and locks on the mining shafts upon the granting of this order.
> 4. Should the Defendant fail to restore Plaintiff's undisturbed possession of the mining site to the Plaintiff within 24 hours of this order, the [5th] Defendant or his

lawful deputy be and is hereby directed and ordered to restore Plaintiff's peaceful and undisturbed possession.

5. The 1st to 4th Defendants jointly and severally be and are hereby ordered to pay costs of suit."

[5] The urgent court application was spiritedly opposed by the first to fourth defendants. They raised some preliminary points that the matter was not urgent; that there was a fatal non-joinder of Mazowe Mining Company (Private) Limited, now the sixth defendant; that the dispute was *lis pendens*; that the plaintiff had approached the court with dirty hands; and that there were alternative remedies available to it. On the merits, they denied having committed any act of spoliation. The first defendant contended that it occupied the mining site in February 2024 when it was vacant following the conclusion of a contract mining agreement with the sixth defendant. Following a hearing before DEME J and an inspection *in loco* at the mining site in question, the court on 25 October 2024 issued the following order:

"1. The points *in limine* for non-joinder and material disputes of fact be and are hereby upheld.

2. Consequently, the matter be and is hereby referred to trial for determination on the basis of *viva voce* evidence under the following conditions:

A. The founding papers filed by the Applicant shall stand as summons.

B. The opposing papers filed by the 1st to 4th Respondents shall stand as notice of entry of appearance to defend.

C. The Applicant is directed to, within 10 days, file the Plaintiff's declaration and thereafter the matter may proceed in terms of the rules.

D. Mazowe Mining Company (Private) Limited, the owner of the disputed mining area, be and is hereby joined to the present proceedings as the 6th Respondent.

E. The Applicant is directed to, within ten days, serve the 6th Respondent with a copy of this application.

F. Costs shall be in the cause."

[6] Following the above order, the plaintiff filed its declaration and served the process as directed by the court on all the defendants. It is clear from the court order, in particular para 2(D), that the sixth defendant, Mazowe Mining Company (Private) Limited, the registered owner of the disputed mining area, was joined as a party to the proceedings, in particular as the sixth respondent (now defendant). The court further directed that the plaintiff proceed to serve the application on the sixth defendant. When the company was served with the application (converted into a summons in terms of the order) and the plaintiff's declaration, the sixth defendant entered an appearance to defend. On 5

December 2024, the six defendant filed a special plea in bar, which is the subject of the present proceedings. The special plea was pleaded as follows:

> "The Plaintiff did not seek leave of the Court to sue a company under corporate rescue.
> 1. On the 15th of February 2024, an application to place the 6th Defendant under corporate rescue was filed under HCHC84/24.
> 2. The Plaintiff was made aware of this development on the 20th of November 2024 through a letter addressed for the very same purpose.
> 3. Despite such notification, the Plaintiff has decided to proceed with the matter.
> 4. It is common cause that there has been no request for leave of the court nor such leave granted.
> 5. The Plaintiff's action against the 6th Defendant is therefore barred by the moratorium provided for a company under corporate rescue under section 126(1) of the Insolvency Act.
> 6. The 6th Defendant will pray for the special plea to be upheld and the claim be dismissed with costs on a higher scale."

[7] At the hearing, counsel for the first to fourth defendants, Ms *Chihombori*, advised the court that she was not making any submissions and would abide by the decision of this court. Since what was before me was a special plea raised by the sixth defendant and which specifically related to the said company, she rightly had no part to play in the dispute before me. The relevant parties' legal counsels made oral submissions on the special plea. The issue to be determined was whether or not the plaintiff's suit was instituted against the sixth defendant, a company under corporate rescue, without the leave of court, contrary to s 126(1)(b) of the Insolvency Act [*Chapter 6:07*].

THE ORAL SUBMISSIONS

SUBMISSIONS FOR THE SIXTH DEFENDANT

[8] Mr *Ngwenya* submitted that the special plea had been raised in terms of s 126 of the Insolvency Act to the effect that no proceedings can be commenced or proceeded with against a company that is under corporate rescue. He submitted that the facts are not in dispute that these proceedings commenced as an urgent application for a prohibitory or spoliatory relief and that the sixth defendant was then joined. He further argued that upon being served with the summons, the sixth defendant advised the plaintiff that there are proceedings for corporate rescue that were commenced against the company in the Commercial Division of the High Court under case number HCHC 84/24. The plaintiff was advised to withdraw the proceedings as they are improper. Section 126 provides for a

general moratorium on proceedings against a company that is under corporate rescue. This applies to any proceedings against the company and its property.

[9] Counsel further submitted that the special plea was to have these proceedings struck off or, at the very least, stayed until the proceedings for corporate rescue are finalised. He submitted that the subject matter of the dispute between the parties is the property belonging to the sixth defendant located in Mazowe, also known as Mazowe Mine. It was also argued that the provisions of s 126 are straightforward, that you can only proceed or commence proceedings against the company under corporate rescue with the leave of the court. It was submitted that in the present matter, no leave was sought or granted.

[10] Mr *Ngwenya* went on to argue that the order issued by the court to join the sixth defendant does not equate to an order granting leave to sue a company under corporate rescue. The plaintiff, therefore, ought to have approached the court first to seek leave to proceed with these proceedings against the company or in relation to its property. He also submitted that the plaintiff informed the court that the company is under corporate rescue. It was known by the plaintiff, who was the applicant in that affidavit, but no leave was then sought after the joinder of the company. Counsel further argued that there was no leave that was sought to proceed with these proceedings. When the court raised a query that this was a court-sanctioned joinder and the same court directed the plaintiff to save the papers on the sixth defendant, counsel insisted that the plaintiff still had to apply for leave to proceed with proceedings against the sixth defendant.

[11] It was further submitted that there was nothing wrong with the order. Counsel submitted that if the plaintiff was aware that the sixth defendant was under corporate rescue, then it had to seek leave to proceed with proceedings. He argued that the order only joined the sixth defendant. Counsel submitted that the order did not amount to the leave of the court to proceed with proceedings in this matter against a company under corporate rescue. It is simply an order for joining the six defendant, and the plaintiff still needed another order which grants leave to proceed against the company.

[12] Counsel submitted that the plaintiff complied with the order but should then have sought leave of the court to proceed with the proceedings against the company, which is under

corporate rescue. The court questioned counsel as to which order or relief would be appropriate if the special plea is to be upheld. This is so as the relief sought to strike the matter off the roll would be appropriate where there is no proper application or valid proceedings. Counsel conceded that such an order to strike the claim off the roll would be inappropriate. He submitted that the proper order would be for a stay of proceedings pending either leave or the finalisation of corporate rescue proceedings. Counsel, therefore, sought an amended order for stay of proceedings accordingly.

SUBMISSIONS FOR THE PLAINTIFF

[13] On the other hand, Mr *Maruva* submitted that he stood by the submissions in the heads of argument. He argued that the order staying these proceedings as prayed for by amendment by the sixth defendant has one or two consequences. Firstly, if the court orders a stay of these proceedings, it has literally reviewed the decision by DEME J. He argued that the reason was that para(s) D and E are very instructive. They tell the plaintiff what to do. The plaintiff does what the court says. The sixth defendant then comes to say you cannot sue me because I am under corporate rescue. But it is a fact that the plaintiff never sued the sixth defendant. It was the court that joined the sixth defendant. So, if the order sought was granted, and the proceedings are stayed, then the court would have reviewed the decision of the court before DEME J.

[14] Counsel further submitted that the court, through DEME J, was aware of the status or the position of the sixth defendant. DEME J nevertheless ordered that the sixth defendant become a participant in the matter. By becoming a participant in the matter, the sixth defendant has an obligation to respond to the pleadings. He further argued that counsel for the defendant said that joinder and leave are distinct. That is, with respect, not correct. Because by joining the sixth defendant, the court, being aware of the status of the sixth defendant, this court gave the plaintiff leave to sue or to proceed with the proceedings. Section 126(1)(b) says there must be leave. There can never be any other leave but an order of court.

[15] Mr *Maruva* further submitted that there was an extant order that said that the sixth defendant be joined and served with the court process. The court granted the order for

joinder as it was sure that the participation of the sixth defendant was material to the conclusion of the matter at hand. The sixth defendant did not take any form of action to seek to rescind the decision by the DEME J, and that decision remains extant.

[16] Counsel also argued that if there is a stay, those two decisions are in conflict. Once the court directs participation, then, with respect, the same court cannot direct a seizure of participation. That would complicate the entire process. It was further submitted that the plaintiff was not at fault with regard to the participation of the sixth defendant. The plaintiff's process needs to proceed. The plaintiff could not have proceeded to institute a secondary process to seek leave where a court of law of the same jurisdiction has already granted a joinder. Counsel submitted that the special plea was without merit. The court's decision is binding. He also submitted that Mr *Ngwenya* did not give a clear position on the status of the corporate rescue proceedings. The process of corporate rescue has a specified period within which it is supposed to commence and conclude.

[17] Counsel went on to submit that the court application, before it became an action process, was clear as to the parties that were participating. The indication in the founding affidavit that the company was under corporate rescue was mindful of the fact that it could not be sued. But the court then directed the suit against the sixth defendant. It was counsel's argument that the plaintiff will be prejudiced if an order for stay is granted. Counsel prayed for the special plea to be dismissed because, in fact, the leave of the court was obtained through a genuine, extant decision of this court having been made through submissions consistent with the fact that there was, with the leave of the court, a need to join the sixth defendant to the proceedings for purposes of it to participate. It was also submitted that the relief being sought by the plaintiff in this matter has nothing to do with the sixth defendant. There is no prayer against the sixth defendant. He argued that this is a spoliatory process where the actions of the first to fourth defendants are in contention, not the actions or anything to do with the sixth defendants.

[18] It was also submitted that a party cannot be granted an order that it has not pleaded. He argued that it was pleaded that leave to sue was required, but counsel for the sixth defendant had now changed the position. They say to proceed with the matter post the order by DEME J requires leave. This is not what the defendant had pleaded. The

defendant cannot be afforded an order that it has not pleaded for. The prayer is now for a stay of proceedings and not the plea in bar pleaded. Counsel also submitted that when you raise a plea in bar, you are basically saying that these proceedings should then come to an end. They should be terminated. This is what the sixth defendant requested. But when he submitted, he sought to have the proceedings stayed. It further submitted that the prayer for stay of proceedings would not be consistent with the pleadings that the sixth defendant raised in their special plea.

SUBMISSIONS IN REPLY FOR THE SIXTH DEFENDANT

[19] Mr *Ngwenya*, in reply, submitted that the plea in terms of s 126 was both a plea in bar and abatement. He further stated that the proceedings referred to in para 11 of the applicant's founding affidavit at p 23 of the record commenced in 2021 were terminated by the Supreme Court. The new proceedings were commenced under HCHC 84/24. Counsel insisted that these proceedings are not authorised to proceed by virtue of a joinder order issued by DEME J. He argued that the question is not about suing the sixth defendant but relates to proceedings against or in relation to the property belonging to the sixth defendant, whether the sixth defendant is sued or not. The proceedings that are in relation to a property against the sixth defendant are also barred by s 126. The fact that no relief is sought against the sixth defendant also does not make any change.

[20] Counsel submitted that the order sought is still a draft order. At the end of the proceedings, the court grants an order that fits the circumstances of the matter. It was further submitted that s 126 says that once a company is under corporate rescue, you cannot commence proceedings. So, if proceedings against a company that is under corporate rescue are commenced without leave, those proceedings are annulled. It was submitted that an order for stay of these proceedings would be appropriate in the circumstances of the matter.

THE LAW

[21] A special plea is defined in Herbstein & Van Winsen, *The Civil Practice of the High Courts of South Africa*, 5th ed, Vol 1 at p 598 as:

> "…one that does not raise a defence on the merits of the case but, as its name implies, sets up some special defence which has as its object either to delay the proceedings (a dilatory plea) or to object to the jurisdiction of the court (declinatory plea) or to quash the action altogether (a peremptory plea)…These special pleas do not concern the merits of the action. They merely seek to interpose some defence not apparent on the face of the pleadings up to the time when they were raised."

The procedure for the raising of a special plea is provided for under r 42(1)(a), which states as follows:

> "(1) As an alternative to pleading to the merits, a party may within the period allowed for filing any subsequent pleading—
>
> (a) take a plea in bar or in abatement where the matter is one of substance which does not involve going into the merits of the case and which, if allowed, will dispose of the case;"

[22] The law is clear that an order of court has the force of law and remains binding on the parties unless it has been reversed or set aside by a court of competent jurisdiction or statute. This general rule applies even where the order was granted in default, and where a litigant believes it was erroneously granted. The law was restated in *Magauzi & Anor v Jekera* SC 54/22, where the Supreme Court said:

> "When a court grants an order, all subsequent acts affecting the dispute between the parties rely on the court's order and not the reason or facts the court based its judgment on. Execution of judgment debts is based on court orders and not the reason for which the court order was granted. Therefore, a party or the parties cannot disregard a court order as they are bound by it. In the case of *Chiwenga v Chiwenga* SC 2/14, it was stated that: The law is clear that an extant order of this Court must be obeyed or given effect to unless it has been varied or set aside by this Court and not even by consent can parties vary or depart therefrom. See also *CFU* v *Mhuriro & Ors* 2000 (2) ZLR 405 (S)."

[23] The legal position was further buttressed in the *Econet Wireless (Pvt) Ltd* v *Minister of Public Service, Labour and Social Welfare* SC 31/16, at p 6. where BHUNU JA also stated:

> "The doctrine of obedience of the law until its lawful invalidation was graphically put across by LORD RADCLIFFE in *Smith v East Elloe Rural District Council* [1956] AC 736 at 769 when he observed that:
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> > "An order, even if not made in good faith, is still an act capable of legal consequences. It bears no brand of illegality on its forehead. Unless the necessary procedures are taken at law to establish the cause of invalidity and to get it quashed or otherwise upset, it will remain as effective for its ostensible purpose as the most impeccable of orders."

> If it were not so, and every litigant challenging the validity of any law was excused from obeying the law pending determination of its validity, there would be absolute chaos and confusion rendering the application of the rule of law virtually impossible."

[24] The general rule, therefore, is that a court order or judgment remains valid and must be complied with unless lawfully discharged. However, under our common law, there are three types of cases which would render an order of court void *ab initio* or a nullity to such an extent that it may not be necessary to have it set aside through any legal process. The void order would not be valid for whatever purpose. This position was recently affirmed by the Supreme Court in *Fabio Aponte v Antolini Luigi & C.S.P.A & Ors* SC 89/25 at p 11, where CHITAKUNYE JA stated:

> "It is axiomatic that the validity of service affects the validity of proceedings. Where there is no valid service the process and the proceedings are a nullity.
>
> In *Todt* v *Ipser* 1993 (3) SA 577 (A) at 589C the court noted that:
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> > "According to our common-law authorities judgments are void in only three types of cases, where there has been no proper service, where there is no proper mandate or where the court lacks jurisdiction.""

ANALYSIS

[25] It is trite that when dealing with a special plea, generally, there is a need for the court to hear evidence to support the special plea. This was enunciated in *Brooker* v *Mudhanda & Anor; Pierce* v *Mudhanda & Anor* SC 5/18 at pp 13-14, where the court aptly held that:

> "When one speaks of the need to discharge an onus, it immediately becomes clear that there is an evidentiary burden that must be met. There is no suggestion that such burden as required to be met was met by documents filed of record. There were no affidavits placed before the court *a quo*. Neither of the parties led evidence.
>
> Thus there was no evidence as to when demand for transfer was made. There was no evidence as to when the cause of action actually arose and given the fact that this was dependent on whether or not the appellants were placed in *mora*, the court was left in suspense on these very crucial issues. The court seems to have been alive to the fact that there was a need for a factual basis to be placed before it to facilitate a determination on the crucial issue of when prescription could be said to have started running.
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> The remarks by the learned judge show that the court made a decision on the special pleas in the absence of evidence. By adopting such an approach the court erred. It was critical for the court to understand the nature of the defences of prescription."

[26] GOWORA JA (as she then was), in *Brooker* (*supra*), further stated:

> "The court *a quo* and the parties before it, ignored the nature of the pleading that was central to the dispute. Essentially, what had to be disposed of was a plea. Its nature did

> not change by virtue of having the adjective special placed before it. **It remained a plea which is a defence and which the court could only determine after hearing evidence unless the facts surrounding the plea were common cause or admitted**. The facts were in dispute. It was therefore a matter for a trial cause. It is referred to as a special plea mainly due to its ability to destroy the action or postpone the proceedings." (*my emphasis*)

Arising from the above authority is that evidence is required either through an affidavit or orally under oath to determine a special plea. However, the leading of evidence is not necessary where the facts related to the special plea are not in dispute or are common cause.

[27] In *casu*, the facts arising from the special plea are largely common cause. In that regard, it was not necessary for the parties to give evidence. It was not in dispute that the sixth defendant was under corporate rescue following the filing of a court application for placing the company under supervision made in terms of s 124 of the Insolvency Act in Case No. HCHC 84/24. There was no dispute that the said application was still pending. The status of the sixth defendant as a company under corporate rescue was also disclosed in para 11 of the applicant's founding affidavit, although it was with reference to a different matter, which Mr *Ngwenya* confirmed was set aside and fresh proceedings for corporate rescue instituted in Case No. HCHC 84/24.

[28] The special plea taken by the sixth defendant was pleaded on the ground that "the plaintiff did not seek leave of the court to sue a company under corporate rescue." The sixth defendant, therefore, contended in its plea that "the plaintiff's action against the 6th defendant is, therefore, barred by the moratorium provided for a company under corporate rescue under section 126(1) of the Insolvency Act. The sixth defendant prays for the special plea to be upheld and the claim be dismissed with costs on a higher scale." The relevant section 126(1) of the Insolvency Act states as follows:

> "**126. General moratorium on legal proceedings against company**
>
> (1) During corporate rescue proceedings, no legal proceeding, including enforcement action, against the company, or in relation to any property belonging to the company, or lawfully in its possession, may be commenced or proceeded with in any forum, except—
>
> (a) … or

(b) with the leave of the Court and in accordance with any terms the Court considers suitable;"

[29] As apparent from the special plea, the sixth defendant's ground for pleading specially was that the plaintiff cannot sue the company under corporate rescue without the leave of the court. That is what the sixth defendant had pleaded. It is trite that pleadings play a very important role in defining the issues for determination. Parties are generally bound by what they have pleaded, as the court is also similarly bound. After considering several authorities, GARWE JA (as he then was) fully explained the important purpose of pleadings in *Medlog Zimbabwe (Pvt) Ltd v Cost Benefit Holdings (Pvt) Ltd* SC 24/18 at pp 10-13 as follows:

> *"...* 25.1 In *Durbach v Fairway Hotel, Ltd* 1949 (3) SA 1081 (SR) the court remarked:-
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> "The whole purpose of pleadings is to bring clearly to the notice of the court and the parties to an action the issues upon which reliance is to be placed."
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> …
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> 25.5 In *Imprefed (Pty) Ltd v National Transport Commission* 1993 (3) SA 94(A), 108, the court cited with approval the case of *Robinson v Randfontein Estates GM Co. Ltd* 1925 AD 173 where at page 198 it was stated as follows:-
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> "**The object of pleading is to define the issues; and parties will be kept strictly to their pleas where any departure would cause prejudice or would prevent full enquiry. But within those limits the court has a wide discretion.** For pleadings are made for the court, not the court for pleadings. And where a party has had every facility to place all the facts before the trial court and the investigation into all the circumstances has been as thorough and as patient as in this instance, there is no justification for interference by an appellate tribunal, merely because the pleading of the opponent has not been as explicit as it might have been."
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> 25.6 In *Jowell v Bramwell-Jones* 1998 (1) SA 836 at 898 the court cited with approval the following remarks by the authors Jacob and Goldrein in their text *Pleadings: Principles and Practice* at p 8-9:
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> "As the parties are adversaries, it is left to each of them to formulate his case in his own way, subject to the basic rules of pleadings … **For the sake of certainty and finality, each party is bound by his own pleading and cannot be allowed to raise a different or fresh case without due amendment properly made. Each party thus knows the case he has to meet and cannot be taken by surprise at the trial. The court itself is as much bound by the pleadings of the parties as they are themselves**. It is not part of the duty or function of the court to enter upon any enquiry into the case before it other than to adjudicate upon the specific matters in dispute which the parties themselves have raised by their pleadings. **Indeed, the court would be acting contrary to its own character and nature if it were to pronounce upon any claim or defence not made by the parties**. To do so would be to enter the realm of speculation. … The court does not provide its own terms of reference or conduct its own inquiry into the merits of the case but accepts and acts upon the terms of reference which

> the parties have chosen and specified in their pleadings. In the adversary system of litigation, therefore, it is the parties themselves who set the agenda for the trial by their pleadings and neither party can complain if the agenda is strictly adhered to."
>
> …
>
> [26] I associate myself entirely with the above remarks made by eminent jurists both in this jurisdiction and internationally. The position is therefore settled that pleadings serve the important purpose of clarifying or isolating the triable issues that separate the two litigants. It is on those issues that a defendant prepares for trial and that a court is called upon to make a determination. **Therefore a party who pays little regard to its pleadings may well find itself in the difficult position of not being able to prove its stated cause of action against an opponent**." (*my emphasis*)

[30] It is, therefore, settled law that the court determines the dispute placed before it by the parties through their pleadings, evidence and submissions. It cannot go on a frolic of its own. This position was affirmed in *Nzara & Ors v Kashumba & Ors* SC 18/18 at p 18, where UCHENA JA said:

> "The function of a court is to determine the dispute placed before it by the parties through their pleadings, evidence and submissions. The pleadings include the prayers of the parties through which they seek specified orders from the court."

[31] It is also trite that a point of law going to the root of the matter can be raised at anytime. However, the law requires that a point of law which is required to be raised as a special plea must still be specifically pleaded at the appropriate stage of proceedings and in terms of the procedure set out in r 42. The law was clearly settled in *Allied Bank Limited* v *Dengu & Anor* SC 52/16 at p 6, MALABA DCJ (as he then was) stated as follows:

> "Pleadings are required to be raised in a formal manner for the court to rely on them. The respondents did not properly plead a special plea.
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> The fact that the issue of *locus standi* was a point of law which could be taken at any stage in the proceedings could not assist the respondents. **Although it is trite that a point of law can be raised at any stage during proceedings, that does not mean that the point of law can be raised anyhow**. In order for one to raise a point of law validly at any stage, notice must be given to the other party of the intention to raise the point. **There must be a formal way of raising the point**. In this case, the issue was raised in correspondence between the parties. The issue of *locus standi* was not properly pleaded by the respondent. The court a *quo* erred in accepting the plea of lack of *locus standi* which was not properly raised."

The above legal position was further restated in the recent Supreme Court judgment in *Marian Chombo* v *The Partners for the Time Being of Mtetwa & Nyambirai Legal Practitioners* SC 106/25 from para 27, where UCHENA JA had this to say:

> "Rule 42 of the High Court Rules, 2021 established the procedural framework governing exceptions, special pleas and related applications, **underscoring that a special plea, such as prescription, must be raised formally, precisely and at the appropriate stage of proceedings**. Subrule 6 requires that the grounds of a special plea be clearly and concisely stated. In terms of subrule (1) (a), a special plea is a plea in bar or abatement that raises a substantive issue capable of disposing of the case without addressing the merits. Subrule (8) requires that it be accompanied by heads of argument, demonstrating that such a plea is not a mere procedural formality but a substantive legal defence requiring reasoned support.
> [28] In essence, **r 42 affirms that a special plea must be formally pleaded and not casually raised**.
> …Therefore, **the crucial requirement in reliance on a special defence is that the defence must be expressly raised, clearly articulated, and substantiated with sufficient evidence. The mere assertion of a legal bar, without proper pleadings and evidentiary support, is insufficient to invoke the court's consideration**." (*my emphasis*)

[32] I have noted that in the special plea, the sixth defendant raised the point that the plaintiff could not sue the company, which is under corporate rescue. In submissions before me, Mr *Ngwenya* turned and was now arguing that the plaintiff cannot proceed with the action without the leave of the court. The special plea in bar pleaded that the plaintiff could not commence the proceedings against the sixth defendant, which would, in turn, render the proceedings a nullity as s 126(1)(b) would require in mandatory terms that leave of the court be sought and obtained before commencing any proceedings against the company or its property when it is under corporate rescue. By its nature, such a special plea is a declinatory or peremptory plea.

[33] However, a prayer for stay of proceedings, which Mr *Ngwenya* sought to incorporate as an amendment to the relief, would not be a competent relief if the proceedings are considered a nullity. Counsel turned to the argument that the proceedings ought not to be continued without leave of court and should be stayed. But the special plea before me was a declinatory plea, while the position adopted in the submissions by Mr *Ngwenya* sought to turn the special plea into a plea in abatement or a dilatory or temporary plea, hence the prayer for stay of proceedings. He was, therefore, now arguing a different plea from what had been pleaded. As stated in *Allied Bank Ltd* (*supra*), a point of law

notwithstanding the right to raise it at any time, must be specifically pleaded or raised in terms of the procedure set out by law. A special plea cannot be raised through oral submissions. Rule 42 provides how such special pleas should be raised. The word "commenced" or to use the exact word used in the special plea "sue" is entirely different from "continued".

[34] The sixth defendant's contention in the special plea was the commencement of the suit, and when the fact that it was not the plaintiff who instituted the proceedings against the company became apparent from the court order, before DEME J Mr *Ngwenya* sought to shift to argue against the continuation thereof, hence the amendment of the relief to be one for stay of execution. His case cannot shift and turn as it progresses. The special plea in bar must be considered in the manner it is pleaded unless an amendment was sought and granted. He could not argue a dilatory plea which he had not pleaded.

[35] In any case, when one looks at the court order of 25 October 2024 before DEME J, the court, in its wisdom, ordered the matter to proceed for determination as a trial action and, with that referral, further joined the sixth defendant to the proceedings. The court further directed the applicant to serve the application upon the company as the sixth defendant in the suit. The joinder was court-sanctioned. In other words, the suit or commencement of proceedings against the sixth defendant was sanctioned by a court order. It was not a suit which the plaintiff itself had initiated as against the six defendant. In that respect, I do not, therefore, find the proceedings to have fallen foul of s 126(1)(b) as the authority to proceed with the matter as an action and also to direct that the process be served on the sixth respondent, which would then trigger a response within 10 days from the service in terms of the rules was granted by the court itself.

[36] The court also directed that the matter may proceed in terms of the rules. See para 2(C) of the court order, which clearly states that "The Applicant is directed to, within 10 days, file the Plaintiff's declaration and thereafter the matter may proceed in terms of the court rules." The court clearly authorised the proceedings against the sixth defendant and for the same to be continued or proceeded with for determination as an action. In that respect, it cannot, therefore, be said that there would be any further leave required by the plaintiff in the circumstances, nor can it be argued that the plaintiff sued the defendant

without the leave of the court. The authority for the proceedings against the sixth defendant arises from the joinder ordered by the court *mero motu,* and the same court ordered that the proceedings may be continued in terms of the court rules.

[37] Considering the nature of the court order given in circumstances where the status of the company was known to the court, that it was under corporate rescue, the said authority for the matter to proceed in terms of the rules for determination would, in effect, constitute such leave or authority of the court to do so. The proceedings were directed by the court against the company, and also proceeded with on the authority of the court order. I do not agree with Mr *Ngwenya* that the order was only for a joinder. The order explicitly authorised these proceedings to proceed. No further leave would be required in the circumstances by the plaintiff. This must also be taken in the context where it was pleaded that the sixth defendant was under corporate rescue. The court was made aware of its status.

[38] When the court authorised the proceedings to proceed as an action for determination and, in the same breath, joined the sixth defendant as a party to that suit and further directed that the process be served on the company, that is clearly the authority of the court for these proceedings to validly hold against the sixth defendant under s 126(1) of the Insolvency Act. Even if it is argued that the court may not have been aware of the status or situation with regard to the sixth defendant and, therefore, erroneously issued the order for the joinder and the continued prosecution of the matter, that does not make the order a nullity or void *ab initio*. An order of court remains valid at law and binding unless lawfully discharged, even where one believes it was erroneously granted. The only exceptions recognised in our common law are the three types of cases set out in *Fabio Aponte* (*supra*), as already alluded to. The effect of an order that is void *ab initio* was also fully explained in *Manning v Manning*, 1986 (2) ZLR 1 (SC) and *Folly Cornshe (Pvt) Ltd v Tapomwa N.O. & Ors* SC 26/14. The recognised three types of cases or exceptions do not arise in this case.

[39] The order must, therefore, be obeyed. The plaintiff simply obeyed the order by serving the process on the sixth defendant, the suit thereof having been authorised by the same court. It is the same court which directed that the proceedings proceed in terms of the

rules for determination as a trial cause. The directed service of the application and declaration within ten days of the court order is such authority to proceed with the action against the sixth defendant. The plaintiff had to proceed as ordered by the court. It was not the plaintiff's own initiative for these proceedings to commence, and to be proceeded with against the six defendant, but everything proceeded on the basis of a court order. In my view, the plaintiff would not be required to obtain any further leave under s 126(1)(b) as the proceedings against the company were to proceed in terms of an order of court.

[40] In the circumstances, there is no factual and legal basis for the sixth defendant to allege that the plaintiff sued the sixth defendant even though it is under corporate rescue, given the general moratorium under s 126. The court itself, through its own order, authorised the proceedings against the sixth defendant and that they proceed in terms of the court rules, even against the sixth defendant. Given that the court order of 25 October 2024 is still extant, in my view, the proceedings cannot, in the circumstances, be taken to be invalid. The court sanctioned these proceedings, and that should meet the legal requirement under s 126(1)(b). The court found the participation of the sixth defendant in the proceedings as the owner of the mining area in dispute to be necessary for the determination of the dispute. To that end, it authorised these proceedings to proceed as an action in terms of the rules despite that the defendant is under corporate rescue.

[41] There is no basis, in my view, even to consider that the proceedings be stayed. I cannot review this court's decision before DEME J. The court cannot review its own decisions. The court is *functus officio* in that regard. The only exception where it can reconsider its decisions is when it is called upon to rescind its judgment through an appropriate application for rescission of default judgment in terms of the rules. The court fully and finally exercised its jurisdiction in sanctioning the joinder and the continuation of these proceedings in terms of the court rules for determination as a trial action. It was incumbent upon the sixth defendant, if it believed that the order was erroneously granted, to seek its rescission in terms of the appropriate provisions of the court rules.

[42] Even assuming the court did not properly consider that the company was under corporate rescue, the issue is one the court can only properly inquire into upon an application in terms of rule 29(1) or the issue is taken up on appeal. The Supreme Court can also

exercise review powers under s 25 of the Supreme Court Act [*Chapter 7:13*] to reverse the court's judgment in question. The law is clear, however, that an order, even if issued erroneously in fact or law, remains valid and binding and must be obeyed. See *Econet Wireless (Pvt) Ltd* (*supra*). It is clear that the plaintiff did not commence the proceedings nor proceed with them against the sixth defendant in its own initiative without leave of court, contrary to s 126(1)(b). The proceedings against the sixth defendant were directed by an order of court which also authorised the plaintiff to continue with the proceedings for determination as an action.

DISPOSITION

[43] I found that the special plea as pleaded and even argued before me could not succeed. The special plea is devoid of any merit. The proceedings against the sixth defendant were sanctioned by the authority of an order of this court. The same court order authorised these proceedings to proceed in terms of the court rules. The order must be given effect to. It remains a valid order which must be enforced unless discharged by an order of a competent court. The plaintiff did not sue out any summons or process against the sixth defendant on its own initiative, nor proceed with the suit without leave of court, but the process against the sixth defendant was court-driven. To that extent, the proceedings do not contravene s 126(1)(b) of the Insolvency Act at all. They are valid court-sanctioned proceedings against the sixth defendant, a company under corporate rescue.

[44] There is no reason for me to depart from the general principle that costs shall follow the event. The six defendant shall, therefore, meet the costs of this special plea.

[45] It was for the above reasons that the court entered the judgment aforestated.

DEMBURE J: ……

Zuze Law Chambers, plaintiff's legal practitioners
Sibanda & Partners, 1st – 4th defendants' legal practitioners
B. Ngwenya Legal Practice, 6th defendant's legal practitioners